

SENATE No. 2142

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act discouraging employers from closing call centers and customer service operations in the Commonwealth and relocating overseas, and for other purposes.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 2142

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 2142) of Paul R. Feeney for legislation to discourage employers from closing call centers and customer service operations in the Commonwealth and relocating overseas, and for other purposes. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2004 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act discouraging employers from closing call centers and customer service operations in the Commonwealth and relocating overseas, and for other purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 149 of the General Laws is hereby amended by inserting, after
2 section 203, the following new section:-

3 Section 204. Save Massachusetts Call Center Jobs

4 (a) As used in the section, the following words shall unless the context clearly requires
5 otherwise, have the following meanings:

6 “Agency”, a state executive agency

7 “Employer”, any business enterprise that employs, for the purpose of customer service or
8 back-office operations:

(i) 50 or more employees, excluding part-time employees; or

(ii) 50 or more employees who in the aggregate work at least 1,500 hours per week

(exclusive of hours of overtime);

“Part-time employee”, an employee who is employed for an average of fewer than 20 hours per week or who has been employed for fewer than 6 of the 12 months preceding the date on which notice is required.

“Secretary”, the Secretary of Labor and Workforce Development.

(b) An employer that intends to relocate a call center, or one or more facilities or operating units within a call center comprising at least 30% of the call center’s, or operating unit’s, total volume when measured against the previous 12 month average call volume of operations or substantially similar operations, from Massachusetts out of state or to a foreign country shall notify the Secretary of Labor and Workforce Development at least 120 days before such relocation.

(c) An employer that violates paragraph 1 shall be subject to a civil penalty not to exceed an amount of \$10,000 for each day of such violation, except that the Secretary of Labor and Workforce Development may reduce such amount for just cause shown.

(d) The Secretary of Labor and Workforce Development shall compile a semiannual list of all employers that relocate a call center, or one or more facilities or operating units within a call center comprising at least 30% of the call center’s total volume of operations, from the Commonwealth of Massachusetts out of state or to a foreign country.

(e) The Secretary of Labor and Workforce Development shall distribute the list required in paragraph 1 to all agencies under the jurisdiction of the Secretary.

(f) Except as provided in subsection (b) and notwithstanding any other provision of law, an employer that appears on the list described in section 3(b)(1) shall be ineligible for any direct or indirect State grants, State guaranteed loans or tax benefit for 5 years after the date such list is published.

(g) Except as provided in subsection (c) and notwithstanding any other provision of law, an employer that appears on the list described in section 3(b)(1) shall remit the unamortized value of any grant, guaranteed loans, tax benefits, or any other governmental support it has previously received to the Secretary of Labor and Workforce Development.

(h) The Secretary of Labor and Workforce Development in consultation with the appropriate agency providing a loan or grant, may waive the ineligibility requirement provided under subsection (a) if the employer applying for such loan or grant demonstrates that a lack of such loan or grant would:

(i) Result in substantial job loss in the Commonwealth of Massachusetts; or

(ii) Harm the environment.

(i) The head of each agency shall ensure that all state-business-related call center and customer

service work be performed by state contractors or their agents or subcontractors entirely within the Commonwealth of Massachusetts. State contractors who currently perform such work outside the Commonwealth of Massachusetts shall have two years following the enactment of

50 this Act to comply with this Section 5; provided, that if any such grandfathered contractors add
51 customer service employees who will perform work on such contracts, those new employees
52 shall immediately be employed within the Commonwealth of Massachusetts.

53 (j) No provision of this Act shall be construed to permit withholding or denial of
54 payments, compensation, or benefits under any other State law (including state unemployment
55 compensation, disability payments, or worker retraining or readjustment funds) to workers
56 employed by employers that relocate to a foreign country.

57 SECTION 2. This Act shall become effective 180 days after the date of enactment of this
58 Act.